

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
July 23, 2026  
8:30 a.m./1:30 p.m.

**10. N. TRUXLER V. C. TRUXLER**

**23FL0639**

On April 29, 2026, Respondent filed a Request for Order (RFO) seeking submission of the Judgment, passport issues, and child support orders. He filed his Income and Expense Declaration on May 4, 2026. All required documents were served on May 5<sup>th</sup>.

On July 7, 2026, the Department of Child Support Services (DCSS) filed a Substitution of Payee.

Respondent filed a supplemental declaration on July 9<sup>th</sup>. It was served the same day but only Petitioner was served. DCSS was not served.

Petitioner filed a Responsive Declaration to Request for Order on July 10, 2026, the Proof of Service says it was served on “Makayla Scott” it is unclear if this was meant to reference Makayla Sooth on behalf of Respondent, there is no Proof of Service for DCSS.

Despite the defect in service, Respondent filed and served a reply declaration on July 16<sup>th</sup>, though again, there is no Proof of Service for DCSS. Respondent does not raise the issue of service but objects on the basis that the Responsive Declaration to Request for Order is unsigned and he asks for it to be stricken from the record. The objection is sustained. The Responsive Declaration to Request for Order is stricken from the record.

Petitioner filed a supplemental declaration and an Income and Expense Declaration on July 16<sup>th</sup>, the Proof of Service indicates Nicky Richardson was served, it is unclear if that individual was served on behalf of Respondent though she is not counsel of record, and there is no Proof of Service or DCSS. The court cannot consider these documents due to the lack of proper service. Additionally, the Income and Expense Declaration and the supplemental declaration were untimely so the court cannot consider them on that ground as well.

Respondent is requesting modification to the child support orders to reflect the current custody orders. He further requests sole decision-making authority regarding the minor’s passport and international travel or, alternatively, sole legal custody. He also asks that the Judgment, which was prepared in 2024, be submitted to include the October 2025 custody orders and any orders regarding Respondent’s requests made herein.

Because DCSS has substituted in as the payee, the issue of child support is continued to Monday, September 14<sup>th</sup> at 8:30 AM to be heard in Department 10 by the Child Support Commissioner in accordance with Family Code § 4251. Respondent is ordered to serve DCSS with the RFO and other required documents.

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Regarding the passport and international travel with the minor, it appears to the court that the parties still do not have vacation time orders (they were ordered to address the issue during private mediation with Mr. Forrester but according to Respondent, Petitioner pulled out of their agreement). The parties are therefore referred to Child Custody Recommending Counseling (CCRC) on Friday, October 2<sup>nd</sup> at 9:00 AM to address issues regarding the minor's passport and international vacations with the minor. A review hearing is set for Thursday, November 12<sup>th</sup> at 8:30 AM in Department 5. Supplemental declarations are to be filed no later than 10 days prior to the hearing date.

The issue regarding the Judgment is continued to join with the review hearing.

**TENTATIVE RULING #10: RESPONDENT'S OBJECTION IS SUSTAINED. THE RESPONSIVE DECLARATION TO REQUEST FOR ORDER IS STRICKEN FROM THE RECORD.**

**THE ISSUE OF CHILD SUPPORT IS CONTINUED TO MONDAY, SEPTEMBER 14<sup>TH</sup> AT 8:30 AM TO BE HEARD IN DEPARTMENT 10 BY THE CHILD SUPPORT COMMISSIONER IN ACCORDANCE WITH FAMILY CODE § 4251. RESPONDENT IS ORDERED TO SERVE DCSS WITH THE RFO AND OTHER REQUIRED DOCUMENTS.**

**THE PARTIES ARE THEREFORE REFERRED TO CHILD CUSTODY RECOMMENDING COUNSELING (CCRC) ON FRIDAY, OCTOBER 2<sup>ND</sup> AT 9:00 AM TO ADDRESS ISSUES REGARDING THE MINOR'S PASSPORT AND INTERNATIONAL VACATIONS WITH THE MINOR. A REVIEW HEARING IS SET FOR THURSDAY, NOVEMBER 12<sup>TH</sup> AT 8:30 AM IN DEPARTMENT 5. SUPPLEMENTAL DECLARATIONS ARE TO BE FILED NO LATER THAN 10 DAYS PRIOR TO THE HEARING DATE.**

**THE ISSUE REGARDING THE JUDGMENT IS CONTINUED TO JOIN WITH THE REVIEW HEARING.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**